

Four states to lead first US jury trial over Meta's alleged youth harms

By **Maria Dinzeo**

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A federal judge overseeing the nationwide social media addiction MDL set trial dates on Wednesday and outlined how the first state case against Meta Platforms will be tried, as years of litigation over Facebook and Instagram's impact on young users move toward a jury. Meanwhile, Meta is planning to withdraw its demand for a jury trial, arguing that it would prefer the case to be heard by the judge.

California, Colorado, Kentucky and New Jersey will be the first states to face off against Meta Platforms at trial later this year in federal court over claims that Facebook and Instagram were deliberately designed to addict young users, fueling a teen mental health crisis.

At a hearing Wednesday, the federal judge overseeing the sprawling multidistrict litigation, or MDL, against major social media companies sketched out the contours of the states' case against Meta, which is scheduled to begin shortly after a Kentucky school district presents its claims against Meta, Snap, TikTok and YouTube to a jury this summer.

US District Judge Yvonne Gonzalez Rogers said there is sufficient similarity among the four states' claims for them to be tried together.

"With four states, the jury, to the extent there are differences, can focus on those differences," she said.

Gonzalez Rogers added that she would consider allowing additional states to join the trial in the Northern District of California through a jury instruction, provided their claims are effectively identical.

"If a state AG can tell me that their claim is nearly identical to one of the claims that are going out with the four states, they may ask to be included in the trial," she said.

The judge set jury selection in the states' case for Aug. 5. Jury selection is scheduled for June 12 in the trial involving a school district in Breathitt County, Kentucky.

Noting her busy trial schedule, Gonzalez Rogers said she wants both the school district's and the states' trials to wrap before October. She told the school district's lawyers, "we should be done with this trial by the week of July 13."

Trial length emerged as a sticking point for the states, which pressed the court for significantly more time than the judge appeared inclined to allow. The states asked for 45 hours to present their case, 40 hours for cross examination, and five hours for opening and closing statements.

This admission surprised Gonzalez Rogers, who questioned why so much time was necessary; a personal injury plaintiff in a parallel case against Meta and Google currently playing out in Los Angeles only received 42 hours.

"Why do you need 90?" Gonzalez Rogers asked.

California Deputy Attorney General Megan O'Neill said it's because the state's case is a bit more complex than the personal injury case. In addition to consumer protection claims, the states have a federal Children's Online Privacy Protection Act claim against Meta for allegedly continuing to use minors' data for machine learning and generative AI model training (see here).

"We do expect to present significant evidence on that COPPA claim that's not present in the school district or personal injury cases," O'Neill said. "And we allege a wide variety of deceptive conduct on Meta's behalf. That is our best estimate right now of the testimony that we would need to provide both for the COPPA claim and for the consumer protection, unfairness and deception claims."

Gonzalez Rogers signaled that she was unlikely to grant the states' request.

"If you cannot tell this jury your case in 45 hours, something is wrong. Think about it. Do they really need to have 60 hours for you prove your case to them? If you can do it in 45 it's better," she said. "It happens in criminal cases all the time where I don't set time limit and lawyers go on and on and they're not helping themselves."

The trial-length dispute unfolded just as another procedural wrinkle surfaced, with Meta revealing that it no longer wants a jury trial.

"We have been talking about the possibility of doing this as a bench trial," Meta attorney James Rouhandeh told the judge.

O'Neill strenuously objected, saying Meta has been "flip-flopping" on the issue, but had filed a jury demand in its answer to California's lawsuit filed in 2022. While the states had not filed their own demand, "We have relied on that demand for years now and litigated the case as a jury trial." She added that Meta shouldn't be able to withdraw that demand unilaterally, "especially when it would prejudice the parties who have litigated the case as a jury trial for years."

Rouhandeh retorted, "I absolutely disagreed with that."

Gonzalez Rogers said some of the states' claims are entitled to a jury trial, while at least one — the California Unfair Competition Law § 17200 claim for unlawful or fraudulent conduct — is not.

Rouhandeh also said the states need a federal basis for a jury trial, which they don't have under COPPA.

"I don't understand why I need to spend time on this. You don't want a jury trial. You want me to decide this for you?" the judge asked Rouhandeh, who replied, "Yes. We want there to be a bench trial on all issues."

Chuckling slightly, Gonzalez Rogers said, "Well, I don't want a bench trial. I really don't. I've done those before. I think that these are important issues that the public should have a voice in."

She said she could resolve the non-jury questions separately, “but to the extent that the claim is a claim that a jury can weigh in on, I’m gonna allow a jury to weigh in on it.”

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